

24STCV34523 24STCV34523

County: los-angeles

Division: Civil Law and Motion

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Case Number: 24STCV34523 Hearing Date: September 10, 2026 Dept: 731

[TENTATIVE] ORDER RE: DEFENDANTS

FCA US, LLC AND REDLANDS CHRYSLER DODGE JEEP RAM'S MOTION FOR SUMMARY JUDGMENT,
OR IN THE ALTERNATIVE, FOR SUMMARY ADJUDICATION OF ISSUES

Moving Party: Defendants, FCA US LLC and Redlands Chrysler Dodge
Jeep Ram

Opposing Party: Plaintiff, Norberto Ayon Osuna

Notice: Defective,

No Remedy Per Case Law

Background Facts

Pleadings

Plaintiff Norberto Ayon Osuna sues

Defendants FCA US LLC ("FCA"), Redlands Chrysler Dodge Jeep Ram ("Redlands Chrysler"), and Does 1 through 10 pursuant to a June 10, 2025, First Amended Complaint alleging (1)-(4) breach of express and implied warranties under the Song-Beverly Consumer Warranty Act ("SBA") against FCA, (5) negligent repair against Redlands Chrysler, and (6) fraud-concealment against FCA. The claims arise from allegations related to defects that arose during the warranty period for a motor vehicle leased by Plaintiff on or about August 13, 2021, from Redlands Chrysler, as manufactured and/or distributed by FCA.

Motion Before the
Court

Now before the Court is Defendants

FCA and Redlands Chrysler's opposed motion for summary judgment or, in the alternative, summary adjudication of the six claims alleged in the FAC.

Motion for Summary

Judgment or, in the Alternative, Summary Adjudication

a. Legal

Standard

A notice of motion for summary

judgment and/or adjudication and supporting papers must be served on all other parties to the action at least 81 days before the time appointed for hearing.

(Code Civ. Proc., § 437c, subd. (a)(2).) If the notice is served by mail, the required 81-day period of notice must be increased by 5 days if the place of address is within the State of California, 10 days if the place of address is outside the State of California but within the United States, and 20 days if the place of address is outside the United States. If the notice is served by facsimile transmission, express mail, or another method of delivery providing for overnight delivery, the required 81-day period of notice must be increased by two court days. (Ibid.)

Critically, California trial courts

do not have authority to shorten the minimum notice period for summary judgment hearings. (McMahon v. Superior Court (2003) Cal.App.4th 112, 115-116, fn. 2 (McMahon) ["The Legislature's decision not to give trial courts discretion to shorten the notice period for summary judgment motions should be contrasted with the authority granted trial courts to shorten the notice period for a host of other motions under section 1005, subdivision (b)," citation omitted] & 118 ["In sum, we hold that, in light of the express statutory language, trial courts do not have authority to shorten the minimum notice period for summary judgment hearings"].)

b. Discussion

Despite not being raised by the

opposition papers, the Court finds that Defendants' motion is untimely and that pursuant to McMahon, this Court lacks authority to proceed with a discussion on the merits.

Specifically, Defendants served their motion on Plaintiff on June 20, 2026. (Motion, Proof of Service ["On June 20, 2026, I served" the motion papers "BY ELECTRONIC MAIL"].)

However, per statute, the motion needed to be served at least 81 days prior to the hearing, yielding an initial due date of Sunday, June 21, 2026, which is pushed back to Friday, June 19, 2026, by operation of law related to calculating of retroactive deadlines as based on a 'last day to perform' (Code Civ. Proc., §§ 10, 12, 12a, 12c), and is further pushed back by operation of law by two court days for electronic service (Code Civ. Proc., § 437c, subd. (a)(2)), yielding a final due date for service of Wednesday, June 17, 2026.

Because Defendants' notice of motion was served on June 20, 2026, i.e., beyond the statutorily permissible timeframe for electronic service, Defendants' motion is untimely. And because this Court lacks authority to shorten the minimum notice period for summary judgment hearings, as expressly held in McMahon and quoted above, the Court cannot proceed with an analysis of the merits of Defendants' motion.

c. Conclusion

Defendants FCA US LLC and Redlands Chrysler Dodge Jeep Ram motion for summary judgment or, in the alternative, summary adjudication is accordingly DENIED.

Defendants FCA US LLC and Redlands Chrysler Dodge Jeep Ram is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at smcdept731@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.